SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Writ Petition (Crl.) No. 445 of 1986 **CNR: SCIN010004451986**

Date of Pronouncement: 26 April, 1994 *Citation: (1994) 3 SCC 394*

CORAM: Hon'ble B.L. Hansaria & R.M. Sahai, JJ.

Petitioner / Appellant: P. Rathinam

- VERSUS -

Respondent / State: Union of India & Another

SUBJECT: RIGHT TO LIFE & SUICIDE LAW **AUTHORITY: Overruled by Supreme Court (Gian Kaur)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Section 309 of the Indian Penal Code deserves to be effaced from the statute book to humanize our penal laws. [OVERRULED by Constitution Bench in Gian Kaur v. State of Punjab (1996)].

STATUTORY PROVISIONS INTERPRETED: Section 309 IPC, Article 21, Article 14

FINAL DISPOSITION: SECTION 309 IPC STRUCK DOWN (OVERRULED IN 1996)

EXECUTIVE SUMMARY:

Division bench held Section 309 IPC (attempted suicide) to be cruel, irrational, and unconstitutional under Article 21. Explicitly overruled by 5-Judge Constitution Bench in Gian Kaur (1996).

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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